

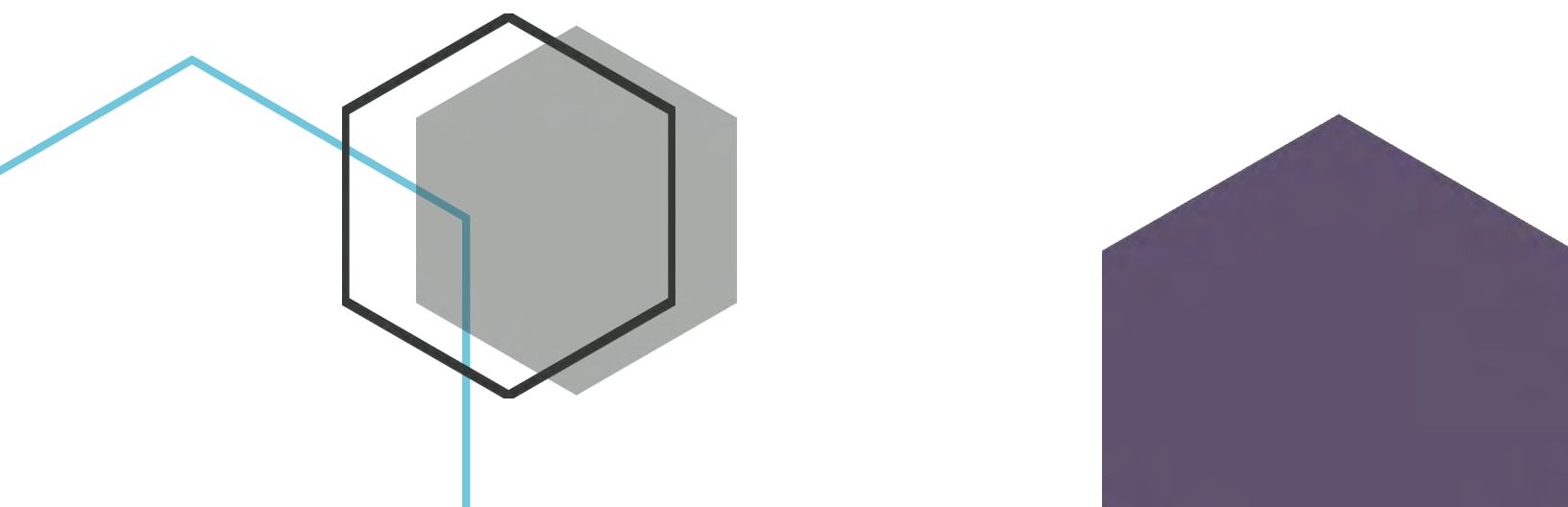


PEI Workforce Application Guide

Critical Worker | Intermediate Experience
International Graduate | Occupations in Demand
PEI Express Entry | Skilled Worker

Office of Immigration

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immigratePEI.ca





Background:

The Prince Edward Island Office of Immigration (the Office) administers provincial immigration pathways in partnership with the federal government - Immigration, Refugees and Citizenship Canada (IRCC), as outlined in the Agreement for Canada – Prince Edward Island Co-operation on Immigration. The purpose of the province administering immigration pathways is to increase the economic benefits of immigration to Prince Edward Island (PEI), by providing the province with a mechanism to prioritize and nominate candidates for permanent residency. Prince Edward Island continues to focus on supporting workforce development by nominating candidates with the skills required to fill job opportunities.

Introduction:

This guide is for the administration of the following immigration pathways:

Provincial Nominee Program – Skilled Worker, Critical Worker, PEI International Graduate, Occupations in Demand, and Intermediate Experience

PEI Express Entry – Federal Skilled Worker, Federal Skilled Trades and Canadian Experience Class

Note: To be eligible for consideration in PEI Express Entry you must have a valid Federal Express Entry Profile Number.

Prince Edward Island receives an annual allocation from the federal government through the Provincial Nominee Program and Express Entry. This annual allocation determines the number of applications that can be nominated by the province on an annual basis. Information on the volume of applicants invited to apply and the schedule can be found on our website: immigratepei.ca

Use of Representatives:

If you choose to use an immigration representative, they must be a member in good standing of the Immigration Consultants of Canada Regulatory Council or a provincial law society. All representatives must register with the Office by submitting the *PEIPNP L-03: Provincial Representative Form*. Upon approval, the Representative will be issued a system-generated key required to access the online system.

You are not required to use a representative to complete the work on your behalf, if you are able to represent your own interest in the immigration process. The Office does not give preferential treatment to applicants represented by an immigration lawyer or consultant. Working with an immigration consultant does not guarantee you will receive nomination from the Province of PEI. If you do receive assistance in the preparation of your application, you must complete the *PEIW-03: PEI Workforce Use of a Representative Form*.

Step 1: Assess Your Eligibility

Prior to creating a profile in the provincial Expression of Interest system, you are required to review program criteria to ensure you meet the stated requirements.

Skilled Worker Stream

To be eligible for Skilled Worker, you must

- have a full-time, non-seasonal (permanent or minimum of two years) job offer from a PEI employer in a high skilled occupation defined by the Training, Education, Experience, and Responsibility classification system as TEER category 0, 1, 2, or 3;
- have at least two years of full-time work experience in the past five years;
- have a valid work permit to be working in Canada;
- have legal status in country of residence;
- have successfully completed a post-secondary degree or diploma (minimum two-year program);
- be between the ages of 18 and 59;



- have sufficient English and/or French language ability to perform the job offered. Language ability can be verified by one of the following:
 - o Providing a valid language test result from an IRCC-approved testing institution, with a minimum score of CLB/NCLC 4. Language tests are valid for 2 years after the date of the test result; or
 - o Providing a completed PEIW-02: Workforce Job Offer Form, indicating the employer is comfortable with the employee's proficiency in English and/or French to perform tasks associated with the job position being offered
- have sufficient financial resources for the applicant and family to pay all immigration costs (including travel expenses) to be able to establish in PEI; and
- demonstrate a genuine intention to settle in PEI.

Note: The **Skilled Worker Stream** may be utilized for talent recruitment outside of Canada, if the Prince Edward Island Employer has received authorization from the Office of Immigration prior to issuing a job offer. With approval, a work permit support letter would be provided for the applicant to seek a work permit.

Critical Worker Stream

To be eligible for the PEI Critical Worker stream, you must

- have a full-time, non-seasonal (i.e. permanent or minimum of two years) job offer from a PEI employer in an intermediate skilled position, defined by the Training, Education, Experience, and Responsibility classification system as TEER category 4 or 5;
- have a minimum of six months full-time, continuous work experience with the PEI employer;
- have a valid work permit and legal status in Canada;
- have successfully completed (at minimum) a secondary school diploma (high school);
- be between the ages of 18 and 59;
- have a minimum two years of full-time work experience or relevant education in the past five years;
- provide a valid language test result from an IRCC-approved testing institution, with a minimum score of CLB/NCLC 4. Language tests are valid for 2 years after the date of the test result;
- have sufficient financial resources to pay all immigration costs (including travel expenses) for you and your family to be able to establish in PEI; and
- demonstrate a genuine intention to settle in PEI.

Changes for Trucking Sector Employees: Effective August 19, 2021, any applicants currently nominated or applying under any Provincial Immigration program under NOC 73300 will be required to have at least 12 months of long-haul truck driving experience and their job offer must be with an eligible PEI employer. Further information can be found in Appendix E.

International Graduate Stream

To be eligible to apply for the PEI International Graduate stream, you must have graduated from a publicly-funded Prince Edward Island post-secondary institution and;

- have a full-time, non-seasonal (permanent or minimum of two years) job offer from a PEI employer;
- have a valid post-graduate work permit and legal status in Canada;
- be able to attend an interview with staff from the Office, if required;
- if in a high skilled occupation defined by the Training, Education, Experience, and Responsibility classification system as TEER category 0, 1, 2, or 3, possess sufficient English and/or French language ability to perform the job by providing a completed PEIW-02: Workforce Job Offer Form, indicating the employer is comfortable with the employee's proficiency in English and/or French to perform tasks associated with the job position being offered;
- if in an intermediate-skilled position defined by the Training, Education, Experience, and Responsibility classification system as TEER category 4 or 5, to provide a valid language test result from an IRCC-approved testing institution with a minimum score of CLB/NCLC 4. Language tests are valid for 2 years after the date of the test result;
- be between the ages of 18 and 59;
- have sufficient financial resources to pay all immigration costs (including travel expenses) for you and your family to be able to establish in PEI; and
- demonstrate a genuine intention to settle in PEI.



Intermediate Experience Stream

To be eligible to apply for PEI Intermediate Experience Stream, you must

- have a full-time, non-seasonal (i.e. permanent or minimum of two years) job offer from a PEI employer in an intermediate-skilled position, defined by the Training, Education, Experience, and Responsibility classification system as TEER category 4;
- have a minimum of six months full-time Canadian work experience that was gained while on a Labour Market Impact Assessment (LMIA) based work permit, and be relevant to the current position the individual is offered in PEI;
- have successfully completed (at minimum) a secondary school diploma (high school);
- be between the ages of 18 and 59;
- have legal status in country of residence;
- have a minimum two years of full-time work experience or relevant education in the past five years;
- provide a valid language test result from an IRCC-approved testing institution, with a minimum score of CLB/NCLC 4. Language tests are valid for 2 years after the date of the test result;
- have sufficient financial resources to pay all immigration costs (including travel expenses) for you and your family to be able to establish in PEI; and
- demonstrate a genuine intention to settle in PEI.

Note: The ***Intermediate Experience Stream*** may be utilized for talent recruitment outside Prince Edward Island, if the Prince Edward Island Employer has received authorization from the Office of Immigration prior to issuing a job offer. With approval, a work permit support letter would be provided for the applicant to seek a work permit. Requests from PEI Employers will be assessed on a case-by-case basis.

Occupations in Demand

To be eligible to apply for PEI Occupations in Demand, you must

- have a full-time, non-seasonal permanent job offer from a PEI employer in either
 - o NOC 33102 (Nurse aides, orderlies and patient service associates)
 - o NOC 73300 (Transport truck drivers),
 - o NOC 75110 (Construction trades helpers and labourers),
 - o NOC 65310 (Light duty cleaners)
 - o NOC 95109 (Other labourers in processing, manufacturing and utilities)
 - o NOC 75101 (Material handlers)
 - o NOC 94140 (Process control and machine operators food and beverage processing), or
 - o NOC 94141 (Industrial butchers and meat cutters, poultry preparers and related workers)
- have at least one year of work experience directly related to the job;
- be 18 to 59 years old;
- have successfully completed (at minimum) a secondary school diploma (high school);
- provide a valid language test result from an IRCC-approved testing institution, with a minimum score of CLB/NCLC 4. Language tests are valid for 2 years after the date of the test result;
- have sufficient financial resources to pay all immigration costs (including travel expenses) for you and your family to be able to establish in PEI; and
- demonstrate a genuine intention to settle in PEI.

Note: The ***Occupations in Demand Stream*** may be utilized for talent recruitment outside Canada, if the Prince Edward Island Employer has received authorization from the Office of Immigration prior to issuing a job offer. With approval, a work permit support letter would be provided for the applicant to seek a work permit. Requests from PEI Employers will be assessed on a case-by-case basis.



Prince Edward Island – Express Entry

If you have high English/French language proficiency and skilled-work experience, you may be eligible for nomination by Prince Edward Island in one of the federal programs:

- Federal Skilled Worker Program;
- Federal Skilled Trades Program; or
- Canadian Experience Class

You are required to show 9 months of continuous work experience with the PEI employer supporting you for immigration **AND** have at least 4 months remaining on your work permit at time of submission of your Expression of Interest **IF**:

- you hold a Post Graduate Work Permit (PGWP) and have graduated from an institution outside of PEI; or
- you have a spousal open work permit as a result of a spouse's study permit from an institution outside of PEI;

Note: Express Entry is a Federal, points-based system that manages the intake of permanent residency applications. To be eligible for the PEI Express Entry Stream, you must already have created a profile in IRCC's Express Entry system. A provincial nomination will provide additional points in your Federal Express Entry profile. Prince Edward Island prioritizes invitations issued through Express Entry for applicants working and living in the province.

Due to the high volume of PGWP applicants from outside of Prince Edward Island, the Office of Immigration may limit invitations in some occupations.

General Eligibility Requirements - All Streams

You may not eligible to apply if you

- already have an active application registered with the PEI Office of Immigration;
- have an immigration application in process in another province or territory in Canada;
- have been refused for misrepresentation through any immigration program;
- are living in Canada illegally;
- have been refused admission to, or ordered to leave Canada or any other country or territory;
- are working in Canada without authorization;
- are living in Canada and are out of legal status and have not applied for restoration of status within 90 days of having lost your status;
- are an unresolved or failed refugee or humanitarian and compassionate claimant living in Canada;
- have not been lawfully admitted to your current country of residence;
- are not lawfully residing in your current country of residence;
- have been offered a seasonal, part-time or casual job in Prince Edward Island;
- are in a sales position that is based solely on commission for compensation;
- are self-employed
- are an individual whose job will not be based in Prince Edward Island;
- are an individual whose job will be permanently based from a home or "virtual" office unless meets policy outlined in appendix F
- base your application on a job offer where you are self-employed in Prince Edward Island;
- base your application on a job offer where you are a shareholder in the business; or
- base your application on a job offer where you are intending to start a business and/or become self-employed in Prince Edward Island.



Employer Requirements - All Streams

The employer is responsible for completing the *PEIW-02: PEI Workforce Job Offer Form* and confirming the following criteria:

- The company has been in active and continuous operation under current ownership/management in Prince Edward Island for a minimum of two years with identified labour gaps;
- The company has a history of good workplace and business practices and complies with all applicable federal and provincial laws, regulations, and standards, including but not limited to labour laws, workers' compensation, human rights, occupational health and safety, as well as the Immigration and Refugee Protection Act (IRPA) and the Immigration and Refugee Protection Regulations (IRPR);
- Provide documentation that the recruitment efforts for the intended profession have been unsuccessful within Canada and the position is critical to the operation of the company;
- Employment is full-time, non-seasonal with a contract for a permanent position or a minimum length of two years;
- Employment in the intended occupation is consistent with the applicant's ability to perform the job, based on the applicant's education, training and/or experience;
- Employment terms and conditions meet all applicable provincial and federal employment workplace standards and the comparable industry wage rate;
- Employment of the applicant does not contravene existing bargaining unit agreements or employment disputes;
- Employment is in Prince Edward Island;
- Employment requiring provincial licensing or accreditation has been verified to ensure the applicant has the necessary credentials to be eligible to work in the occupation in Prince Edward Island;
- A signed employment contract is provided, which includes the terms and conditions of the full-time job offer;
- Settlement support is provided to the applicant and the family to help them establish, if applicable; and
- Labour Market Impact Assessment (LMIA) is provided, if applicable.

Note: Employers must be willing to register with the Federal Employer Portal and pay the **Employer Compliance Fee of \$230**, if the foreign national requires a work permit or should the current work permit expire prior to permanent residency being granted.

Federal Employer Portal: The correct LMIA exemption code must be used for a successful work permit application. Applicants with the Province of Prince Edward Island Work Permit Support letter are categorized as "Canada – PT Agreements- R204(c)", and the LMIA exemption code is T13.

Step 2: Expression of Interest

Individuals who meet program criteria and are interested in applying to the Prince Edward Island Provincial Nominee Program must submit a profile in our online Expression of Interest (EOI) system. You can create your EOI account at any time by providing your contact and passport information, including a valid email address. Once your account is created, you may select the Provincial Stream that you would like to apply under and submit your profile for review by the Office. If your profile is selected, you will receive an Invitation to Apply. Priority is given to those who demonstrate the greatest potential to become economically established in PEI.

Note: An Expression of Interest profile is not an application; it is an indication of your interest in being considered for our program and confirmation that you believe you meet required criteria. The Office reserves the right to limit intake or make exclusions from Expression of Interest draws.



Step 3: *Invitation to Apply*

If you are invited to apply, you will receive an email notification that will include your file number and a link to our Workforce Application Form. You will have up to 30 days from the date of invitation to complete the online application form. After this time, your invitation will expire and you will have to submit a new profile for consideration. You can check the status of your profile at any time by logging into your EOI account. If you decide not to submit your application, you may also withdraw your profile through the EOI system. Please note that you may submit a new profile immediately, but the new profile is not guaranteed another Invitation to Apply.

Note: The frequency of Invitations to Apply is based on annual nomination allocations, processing capacity, and provincial priorities. You can find information regarding the invitation schedule on our website: immigratepei.ca

Step 4: *Prepare your Application*

If you are invited to apply, you must submit your Workforce Application Form electronically and pay the \$300CAD fee through PEI's online service and gather all completed forms and required supporting documentation listed in the checklist (Appendix C). Please answer all questions and sign all forms, where applicable. By signing these documents, you are certifying that all information provided therein, whether prepared by you or not, is complete and true in all respects. If your documents are not in English or French, you must provide a copy of the certified translation and a copy of the original document. Only submit requested documents with your initial application. The Office reserves the right to request additional supporting documents at any time.

Note: If there are changes in your circumstances, such as family status, employment, contact information, etc., you must notify the Office immediately. If any changes occur after nomination, you must notify the Office and IRCC.

PEI Job Offer:

[PEIW-02: Workforce Job Offer Form](#)

Use of a Representative:

[PEIW-03: Workforce Use of a Representative Form](#)

All supporting documents must be provided as one combined portable document format (PDF) file. You will have to scan paper documents into PDF files and convert electronic documents into PDF files and then combine all files into one for submission. Please note that all documents must be clear enough to read and

- documents with images should be scanned in colour;
- text-only documents may be scanned at a grayscale setting to reduce file size;
- scanner resolution should be a minimum of 300 dots per inch;
- no enhancement or editing should be done to a scanned document;
- the total size of the document should be no more than 50 megabytes (MB); and
- the file name of your attachment must be no more than 50 characters.



Step 5: Submit Your Application

Payment of the Application Fee will be prompted at the time of the Workforce Application Form submission. Accepted forms of payment are Master Card, Visa, Mastercard Debit and Visa Debit. Your online application will be received by the Office as soon as your payment has been approved.

Within five business days you will receive a secure link to upload your supporting documents. Once all your supporting documents have been uploaded in one pdf, your application is considered complete. Applicants can log into their Expression of Interest account for status updates on their file. Should any additional information be required for processing, a program officer will reach out to you or your representative, if applicable. Our office reserves the right to request meetings with the principal applicant and dependent family member, if applicable, at any time during file processing. Please note, our office does not post or guarantee progressing times.

Step 6: Submit Your Nominated Application for Permanent Residency

PEI Application Nomination:

If you are selected for nomination by PEI, you must submit your application for Permanent Residency within **six months** of receiving your nomination certificate. Please remember that you must maintain the conditions of your nomination while you are awaiting a decision on your PR application. IRCC is responsible for the decision on all applications for Permanent Residency. More information on how to submit your application to the federal office can be found on [IRCC's website](#).

PEI Application Refusal:

If you are found non-compliant with the PEI Office of Immigration's requirements, your application will be refused and a decline letter will be issued. There is no appeal process for refused applications. Processing fees will not be returned. You may choose to submit a new Expression of Interest immediately, if you meet the program criteria at that time.

Misrepresentation:

If it is found that you, or any person included in or associated with your application, has directly or indirectly misrepresented or intentionally withheld or failed to submit, material fact(s) or information that induced or could have induced errors in the administration of the program whereas you could have been issued a nomination certificate without having provided truthful and complete information to enable the PEI Office of Immigration to properly assess the application, your application will be refused due to misrepresentation, regardless of your ability to meet any, or all of the eligibility requirements. Applicants who are refused for misrepresentation are prohibited from applying to the PEI Office of Immigration for **two years** from the date of decision.

Step 7: Landing in Prince Edward Island

If you are approved for Permanent Residency by IRCC, you may be contacted for up to five years after landing with a short survey to update your file.



Appendix A [Labour Points Grid]

Within the EOI system, there are six areas with associated points. The maximum points are 100. The Office of Immigration reserves the right to change selection criteria and points at any time without notice.

Workforce Category	Skilled Worker	Critical Worker	International Graduate	Intermediate Experience	Occupations in Demand
Age	15	15	25	15	15
Language	20	20		20	20
Education	15	15	35	15	15
Work Experience	20	20		20	20
Employment	15	15	20	15	15
Adaptability	15	15	20	15	15
Maximum Points	100	100	100	100	100

**Shaded cells indicate points are not relevant to specific streams.*

Points for Age are awarded based on the date of birth entered in your account.

Age	Skilled Worker in / outside Canada	Critical Worker	International Graduate	Intermediate Experience	Occupations in Demand
18-24	7	7	10	7	7
25-44	15	15	25	15	15
45-49	10	10	15	10	10
Over 49	0	0	0	0	0
Maximum Points	15	15	25	15	15



Appendix A [Labour Points Grid - Continued]

Points for Language are awarded based on a submitted language test or, if applying through the Skilled Worker Stream, you may submit *the PEIW-02 Workforce Job Offer Form* (indicating the employer is comfortable with the employee's proficiency in English and/or French to perform tasks associated with the job position being offered). If evidence of proficiency in both official languages is submitted, you will receive points for each language, to the maximum points available for this question. Your language test must be valid and written within the last 2 years from an IRCC-approved testing institute. The lowest score achieved in the four skills (Reading, Writing, Speaking, and Listening) is your score. For example, if you have a 7 in Reading, Writing, and Speaking, but a 5 in Listening, your CLB will be 5. Refer to the Language Test Equivalency Charts on IRCC's website to determine your Canadian Language Benchmark (CLB) or Niveaux de compétence linguistique canadiens (NCLC) level.

Language Ability	Skilled Worker in / outside Canada	Critical Worker	International Graduate	Intermediate Experience	Occupations in Demand
Employer signed PEIW-02: Workforce Job Offer Form	20				
CLB / NCLC 9 or 10	20	20		20	20
CLB / NCLC 8	17	17		17	17
CLB / NCLC 7	15	15		15	15
CLB / NCLC 6	10	10		10	10
CLB / NCLC 5	5	5		5	5
CLB / NCLC 4	0	0		0	0
Maximum Points	20	20		20	20

Points for Education will be awarded based on the highest level of education completed.

Education	Skilled Worker in / outside Canada	Critical Worker	International Graduate	Intermediate Experience	Occupations in Demand
Master's level or PhD from a graduate school of a college or university, after completion of a Bachelor's or Master's degree	15	15	35	15	15
Post-secondary academic degree (Bachelor) minimum of three years of study	12	12	20	15	15
Post-secondary diploma minimum of one year of study	10	10	20	15	15
Completion of secondary school		10		15	15
Maximum Points	15	15	35	15	15



Points for Work Experience will be awarded based on full-time employment.

Work Experience	Skilled Worker in / outside Canada	Critical Worker	International Graduate	Intermediate Experience	Occupations in Demand
More than 6 years	20	20		20	20
4-6 years	15	15		15	15
2-4 years	10	10		10	10
Up to 2 years	0	0		0	0
Maximum Points	20	20		20	20

Points for Employment will be awarded based on work experience and job offer.

Employment	Skilled Worker		Critical Worker	International Graduate	Intermediate Experience	Occupations in Demand
	In PEI	Outside Canada				
Working in a permanent position in PEI with a valid work permit	5		5	5	5	
Job offer in PEI related to my education	10	10	10	10		
Foreign qualification verified with the regulated body in PEI. This is not an ECA	5	5	5	5	5	5
At least 1 year continuous full-time work experience in PEI	5	5	5	5	5	
Job offer in PEI related to my experience					5	10
I have previous work experience, gained from an LMIA					5	
Maximum Points	15	15	15	20	15	15



Appendix A [*Labour Points Grid - Continued*]

Adaptability points will be awarded based on proof submitted of any of the adaptability factors.

Adaptability	Skilled Worker in / outside Canada	Critical Worker	International Graduate	Intermediate Experience	Occupations in Demand
Currently have close family member(s) living in PEI for at least 12 consecutive months who are permanent residents or Canadian citizens	5	5	5	5	5
Spouse/common-law partner and/or dependent child(ren) have a language ability of CLB/NCLC 6 or higher in English or French	5	5	5	5	5
Currently own residential property in PEI for at least 12 consecutive months	5	5	5		
Graduated from a recognized PEI post-secondary institution	5	5	5	5	5
Spouse/common-law partner has at least 3 years of work experience in the last 5 years	5	5	5	5	5
Dependent child(ren) have been enrolled in a PEI educational institution for at least 6 continuous months	5	5			
Maximum Points	15	15	20	15	15



Appendix B [Express Entry Points Grid]

Within the EOI system there are six areas with associated points. The maximum points are 100. The Office of Immigration reserves the right to change selection criteria and points at any time without notice.

Express Entry Stream	Express Entry with a Job Offer	Express Entry without a Job Offer
Age	20	20
Language	20	20
Education	15	15
Work Experience	15	20
Employment	15	10
Adaptability	15	15
Maximum Points	100	100

Points for Age are awarded based on the date of birth entered in your account.

Age	Express Entry with a Job Offer	Express Entry without a Job Offer
18-24	7	7
25-29	20	20
30-44	15	15
45-49	10	10
Over 49	0	0
Maximum Points	20	20

Points for Language are awarded based on a submitted language test. Your language test must be valid and written within the last 2 years from an IRCC-approved testing institute. The lowest score achieved in the four skills (Reading, Writing, Speaking, and Listening) is your score. For example, if you have a 7 in Reading, Writing, and Speaking, but a 5 in Listening, your CLB will be 5. Refer to the Language Test Equivalency Charts to determine your Canadian Language Benchmark (CLB) or Niveaux de compétence linguistique canadiens (NCLC) level.

Language Ability	Express Entry with a Job Offer	Express Entry without a Job Offer
CLB / NCLC 9 or 10	20	20
CLB / NCLC 8	15	15
CLB / NCLC 7	10	10
Below CLB / NCLC 7	0	0
Maximum Points	20	20



Appendix B [Express Entry Points Grid - Continued]

Points for Education will be awarded based on the highest level of education completed.

Education	Express Entry with a Job Offer	Express Entry without a Job Offer
Master's level or PhD from a graduate school of a college or university, after completion of a Bachelor's or Master's degree	15	15
Post-secondary academic degree (Bachelor) from a college or university that required at least three years of full-time study	12	12
Post-secondary diploma in a specific trade that required at least two years of full-time study after secondary school	10	10
Completion of secondary school	0	0
Maximum Points	15	15

Points for Work Experience will be awarded based on work experience in the National Occupation Code reported in your Federal Express Entry profile.

Work Experience	Express Entry with a Job Offer	Express Entry without a Job Offer
More than 6 years	15	20
4 - 6 years	15	15
2 - 4 years	10	10
1 - 2 years	5	5
Maximum Points	15	20

Points for Employment will be awarded based on work experience and job offer.

Employment	Express Entry with a Job Offer	Express Entry without a Job Offer
Working in PEI on a valid work permit	5	
Job offer in PEI related to education	5	
Foreign qualification verified with the regulated body in PEI. This is not an Educational Credential Assessment (ECA).	5	5
At least 1 year continuous, full-time work experience in PEI	5	5
Maximum Points	15	10



Appendix B [*Express Entry Points Grid - Continued*]

Adaptability points will be awarded based on proof submitted of any of the adaptability factors.

Adaptability	Express Entry with a Job Offer	Express Entry without a Job Offer
Currently have close family member(s) living in PEI, for at least 12 consecutive months, who are permanent residents or Canadian citizens	5	5
Spouse/common-law partner and/or dependent child(ren) have a language ability of CLB/NCLC 6 or higher in English or French	5	5
Currently own residential property in PEI for at least 12 consecutive months	5	5
Graduated from a recognized PEI post-secondary institution	5	5
Spouse/common-law partner has at least 3 years of work experience in the last 5 years	5	5
Maximum Points	15	15

Appendix C [Documents Checklist]

All documents must be compiled into one PDF file and submitted electronically via the secure link provided to you by the Office. Do not email or send paper copies of any supporting documents for your application. Review and organize your completed forms and supporting documents in the order below before submitting your application. The Office of Immigration reserves the right to request further information if required.

Identity [Scanned Copies]

- ☐ Birth certificate for Principal Applicant and spouse/common-law partner (if applicable) or other official identity document
- ☐ Marriage certificate (if applicable)
- ☐ Divorce certificate (if applicable)
- ☐ Divorce agreement (if applicable)
- ☐ Death certificate of former spouse (if applicable)
- ☐ Proof of close family member living in PEI (if applicable)

Dependant's Information (If Applicable)

- ☐ Birth Certificate
- ☐ Official Adoption Papers (if applicable)
- ☐ Proof of custody and proof that he/she may be removed from the jurisdiction of the court (if applicable)
- ☐ Proof of enrollment in PEI educational institution (if applicable)

Travel/Status Documents

- ☐ Color scan of bio data page of passport for all people included in application Status documents for country of residence, if different from country of citizenship
- ☐ Correspondence and/or refusal letters for previous applications for immigration to Canada through Federal and/or Provincial programs (if applicable)
- ☐ Copies of temporary status documents (visitor visas, work permits, study permits) for Principal Applicant and all dependants (if applicable)

Language

- ☐ Copy of valid language test showing results obtained within the last 2 years, confirming satisfaction of program requirements for Principal Applicant and spouse/common-law (if applicable).
Or
- ☐ If applying through the Skilled Worker Stream/International Graduate Stream you may submit a PEIW-02: Workforce Job Offer Form with the employer, indicating they are comfortable with language proficiency.
- ☐ Copy of valid language test showing results obtained within the last 2 years of a minimum CLB/NCLC 4 in second official language (if applicable)
- ☐ Copy of valid language test showing results obtained within the last 2 years of a minimum CLB/NCLC 6 for spouse or common-law partner (if applicable)

Education [Scanned Copies]

- ☐ Diploma and transcript for highest level of education received, confirming satisfaction of program requirements for Principal Applicant and spouse/common-law partner (if applicable) or a valid education credential assessment issued in Canada
 - If you were educated in Canada, you must provide a copy of your degree/diploma and transcripts.

Employment [Scanned Copies]

- ☐ Detailed resume for the Principal Applicant and spouse/common-law partner (if applicable)
- ☐ Letters of reference from previous employers, supporting work experience claimed for Principal Applicant and spouse/ common-law partner (if applicable)
- ☐ Employment contract signed with PEI employer
- ☐ Record of hours and weeks worked, if currently a temporary worker in the province Labour Market Impact Assessment (if applicable)

Financial Information [Scanned Copies]

- ☐ Most recent six months bank statements from all accounts for Principal Applicant and spouse/common-law partner (if applicable)
- ☐ T1 General tax return for Principal Applicant and spouse/common-law partner who resided in Canada in the past tax year (if applicable)

Appendix D [Definitions]

Application: A package including your online application form submission, payment of the application fee, and electronic copies of all forms, supporting documents and information required for Provincial Nomination and Permanent Residency.

Canadian Language Benchmark (CLB): The Canadian standard used to describe, measure, and recognize English language ability of adult immigrants and prospective immigrants who plan to live and work in Canada, or apply for citizenship. The Niveaux de compétence linguistique canadiens (NCLC) is used to assess abilities in the French language. More information can be found on IRCC's [website](#).

Close family member: Includes brother/sister, aunt/uncle, niece/nephew, cousins, grandchildren, parents or grandparents of the applicant or the applicant's spouse/common-law partner.

Common-law partner: A person who has been living with another person in a conjugal relationship for at least one year. The term refers to opposite-sex and same-sex relationships.

Comparative industry wage rate: The median wage, as determined by Economic and Social Development Canada (ESDC), based on the NOC code for the position. [Click here for more information](#).

Dependant: A spouse, common-law partner, or dependent child of a permanent resident or principal applicant.

Dependent child: Children qualify as a dependant if they are under 22 years old and do not have a spouse or common-law partner. Children 22 years old or older (also known as an overage dependent child) qualify as dependants if they have depended on their parents for financial support since before the age of 22 and are unable to financially support themselves because of a mental or physical condition. The dependent child must meet these criteria, on the date the complete applications submitted to the Office of Immigration.

Educational Credential Assessment (ECA): A report issued by an organization designated by the Minister of Immigration, Refugees and Citizenship Canada that verifies the authenticity of a foreign diploma, certificate or credential, and assesses its equivalence to a Canadian educational credential. More information can be found on IRCC's [website](#).

Expression of Interest Account: An online account in the EOI system consisting of a Foreign National's contact and basic personal information. An account is needed before a foreign national without a Representative is able to create a profile.

Expression of Interest Pool: People who meet PEI PNP criteria may submit their EOI Profile into an electronic pool of candidates.

Expression of Interest Profile: An online profile created by a foreign national expressing interest in becoming a permanent resident and residing in PEI through PEI's immigration programs.



Expression of Interest System: The PEI Office of Immigration's online system to accept EOI profiles for consideration to apply for the PEI PNP.

Federal work place standards: Federal standards in place by Employment and Social Development Canada (ESDC) governing work place standards. More information can be found on the ESDC [website](#).

Foreign National: A person who is not a Canadian citizen or a permanent resident.

Foreign qualification recognition: Foreign credential recognition is the process of verifying that the education and job experience obtained in another country are equal to the standards established for Canadian professionals. Credential recognition for regulated occupations is mainly a provincial responsibility that has been delegated in legislation to regulatory bodies. This is not an education credential assessment (ECA).

Full-Time Work: At least 30 hours per week for which wages are paid

Immigration, Refugees and Citizenship Canada (IRCC): The name of the Canadian federal department that facilitates the arrival of immigrants to Canada, provides protection to refugees, and offers programming to help newcomers settle in Canada.

Invitation to Apply: The invitation extended to a foreign national to submit a complete application for nomination to the Office of Immigration. The invitation is only extended to those individuals that have created an eligible Expression of Interest profile.

Job Offer Related to Education: Education is considered related to a job offer if it is specifically listed in the NOC description as a requirement for the position.

Labour Market Impact Assessment (LMIA): A document that an employer in Canada must usually get before hiring a foreign worker. A positive LMIA will show that there is a need for a foreign worker to fill the job and that no Canadian worker can do the job. A positive LMIA is sometimes called a Confirmation letter. If you need an LMIA, your employer must send an application to Employment and Social Development Canada (ESDC).

Landing: The final interview with a federal immigration officer at either a port of entry or a local IRCC office within Canada, during which an applicant becomes a permanent resident. This happens when the person signs the confirmation of permanent residence.

Legal status: You are authorized to enter and remain in Canada as a temporary or permanent resident under the Immigration and Refugee Protection Act, as a Canadian citizen under the Citizenship Act, or as a Registered Indian under the Indian Act.

National Occupation Classification Code (NOC Code): A list of all the occupations in the Canadian labour market. It describes each job according to the Training, Education, Experience, and Responsibilities required to do the job. The NOC Code is used to collect and organize job statistics and to provide labour market information. It is also used as a basis for certain immigration requirements. More information can be found on IRCC's [website](#).



Non-Seasonal: Consistent and regularly scheduled paid employment throughout the year. It includes working schedules where pay does not stop during periods of non-work. It does not include work with periods of unemployment where the worker receives employment insurance throughout any part of the year

Post-graduate work permit: A document issued by IRCC to eligible foreign students who have graduated from an approved program of study at an eligible post-secondary institution in Canada that is participating in the Post-Graduation Work Permit Program and applied to IRCC within 90 days of completing all degree or program requirements. It allows the bearer to work legally in Canada after completing studies.

Post-Secondary: A stage of higher education that comes after secondary school. This refers to college, university, or technical school offering programs of study.

Principal Applicant: When a family applies together, one member must be the main or “principal” applicant. For example, a mother applying for permanent residence with her three children would be the principal applicant. When parents are included in an application, the dependent children cannot be principal applicants.

Prince Edward Island employer: An employer who is registered and liable to pay tax in Prince Edward Island and legally registered to do business in the province.

Provincial work place standards: Provincial standards in place by the Department of Justice and Public Safety government work place standards. More information can be found on the PrinceEdwardIsland.ca [website](#).

Publicly-funded, PEI post-secondary institution: A post-secondary institution that derives its primary funding from the Province of PEI.

Relevant Education: A minimum of a two year Canadian post – secondary degree or diploma.

Representative: An immigration lawyer or consultant (Regulated Canadian Immigration Consultant) approved by the Province to submit applications on behalf of foreign nationals, who are applying through the Workforce Category.

Secondary school: An institution that provides an education to students who have completed elementary school. In PEI, this is 12 years of schooling.

Sufficient financial resources: Sufficient funds to cover federal immigration fees, travel costs for all included in the application, as well as everyday living expenses.

Training, Education, Experience, and Responsibility Categories (TEER Categories): The skill level category in which an occupation lies. These can be broken down into TEER Category 0, 1, 2, 3, 4, and 5.

Valid job offer: A job offer that is permanent or for a minimum of 24 months.



Work permit: A document issued by IRCC that authorizes a person to work legally in Canada. It sets out conditions for the worker, such as: the type of work they can do, the employer they can work for, where they can work, and for how long they can work.

Appendix E [*Changes for Trucking Sector Employees*]

Employer support from an eligible PEI employer

All applications with a job offer in NOC 73300 must be supported by an eligible PEI employer. To be eligible to support applications an employer must:

- have an Established Place of Business. An “Established Place of Business” means a physical structure that is:
 - o owned or leased by the Employer;
 - o located within Prince Edward Island and which has both a street and mailing address within Prince Edward Island;
 - o open for business and staffed during regular business hours by one or more persons employed on a permanent basis (i.e., not an independent contractor) for the purpose of the general management of the Employer’s trucking-related business operations, and which has:
 - clear signage representing the business
 - areas where equipment is parked, stored, or maintained (e.g. garage)
- have been in continuous, active operation in Prince Edward Island for at least two years (24- months) under the same ownership;
 - o if there is or has been a change in ownership, the business must continue to operate for at least two years under new ownership before being able to access Prince Edward Island immigration programs. This does not apply, if the change of ownership has been to a direct family member.
- be in good standing with any provincial and or federal legislation governing employment standards and occupational health and safety legislation; and,
- not be in violation of the Immigration and Refugees Protection Act (IRPA) or Immigration and Refugees Protection Regulations (IRPR).

Employers must be actively engaged in the PEI business, and therefore directly connected to the employment of the candidate. Consequently, recruitment-type, temporary placement-type, or broker-type agencies (i.e. where candidates are nominated with the support of one employer and then contracted out to other businesses) are not permitted. An Immigration Program Officer must be satisfied that the individual making the offer of employment has an employer-employee relationship.

Appendix F [Telework Policy]

The purpose of this policy is to support PEI employers with chronic labour needs and skill gaps throughout the province while maintaining strong program integrity and supporting the settlement and retention of newcomers to the Province. This policy reflects the changing business environment in which more businesses in Prince Edward Island are operating using a distributed workforce model, including teleworking arrangements. In many cases, companies have employees working in different physical locations. In many cases, companies are utilizing hybrid models where employees work both in the office and from home on different days.

- This policy applies to employers whose candidates' job requires them to telework for any amount of time. The application must meet the criteria outlined in this policy.
- Employers whose business model is a purely virtual office and candidates whose job offer is with an employer whose business model is a virtual office (i.e., no bricks and mortar), are not eligible for the PEIPNP or the AIP.
- The policy does not apply to BIC Stream applications.

Mandatory Criteria:

- The candidate lives in Prince Edward Island at the time of application, has lived in PEI during their eligibility period for PNP or AIP, and continues to live in PEI until Federal PR processing is complete.
- A maximum of 25% of the employer's total workforce may be applicants to our Provincial immigration programs (PNP and AIP) who are working from home.
 - Example: if an employer has total workforce of 100 employees, 25 PNP/AIP applicants may work from home under this policy.
- The business has a minimum of 10 employees in PEI who have worked for the business for at least two years and are residents of PEI. The PEI Office of Immigration may require proof such as but not limited to job descriptions, payroll records and work schedules.
- A business with fewer than 10 employees may be eligible if it has a pre-existing relationship with Innovation PEI (IPEI) and has confirmation of support from IPEI.
- The business operates from a commercial, industrial or retail office space in Prince Edward Island and has operated with employees from this space for at least two years.
- The employer demonstrates that the candidate addresses a labour need in PEI and demonstrates the rationale for the candidate to telework rather than work from an office.
- The employer must inform the PEI Office of Immigration of any changes in employment status including relocation outside of the province.
- Employers who fail to inform the Office of Immigration of employment changes including relocation outside the province may be suspended from using provincial immigration programs for a period of one year.

Final determination of eligibility for a PEIPNP and AIP application that includes a telework arrangement is at the sole discretion of the PEI Office of Immigration.